Scoring criteria

- **A score more than "0"**
  - High compliance costs
- **A score of "0"**
  - Low compliance costs
  - Absence of specific measures/ regulations
    - Citing relevant general rules (if have)
    - State the reason in the 'Impact' column.

The score runs from '0' (low compliance cost) to '1' (high compliance cost)

A score which is greater than '0' indicates one of the following

1. A measure implies a differential treatment between domestic and foreign providers of ICT goods, online services, digitally-delivered products despite being in the same or similar circumstances.

2. A measure aims to achieve a non-economic objective but ends up blocks or discourages foreign and local businesses from participating in digital trade in the regulating economy.

3. An economy fails to adopt a certain international agreement, legislation, or legal mechanism considered of significant importance for the development of digital trade

FAQ

- Pillar 6 – Cross-border Data Policies

- Indicator 6.1 (Ban to transfer and local processing requirement) and 6.4 (Conditional flow regime): What is the difference between Indicator 6.1 and 6.4?

- If a law completely prohibits data transfer abroad, it should be categorized as a "ban to transfer." (Pillar 6.1). However, if the law prohibits the data to transfer but the data can be transferred when certain conditions/requirements are fulfilled (e.g., obtaining the data subject's consent), it falls under "conditional flow regime." (Pillar 6.4). Note that Pillar 6.1 further captures when the data must be processed locally.

- Indicator 6.3 (Infrastructure requirement): Does the law governing the data center (for example, security control, registration requirement, license) list under this indicator?

- Indicator 6.3 captures whether transferring data abroad is subject to an infrastructure requirement or the need to establish a data center or server locally.

- The indicator 6.3 does not cover the requirements that applied to the already established data center (e.g., the data center shall ensure data privacy of the collected data, etc.) or the requirement that the applicant needs to conform to establish a data center in respective jurisdiction (e.g., licensing requirement, registration). However, the licensing requirements for data centers might be applicable under indicator 9.4 (Digital services and applications license).

• In a case where a country does not mandate the requirement to establish the infrastructure for data transfer purposes, but has implemented other data center requirements, you can add that information and assign a score of 0.00.

• Pillar 7 – Domestic Data Protection and Privacy

• Indicator 7.1 (Framework for data protection): How to determine “comprehensive data protection”?

• To determine whether the data protection law is comprehensive or not when the law is applied horizontally across all sectors. If the law applies to a specific sector, please assign a score of 0.5.

• Indicator 7.3 (Minimum period for data retention): How to determine the “minimum” period of data retention?

• If the duration (e.g., day, month, year) is clearly specified, the measure is the ‘minimum period of data retention’. However, if the retention period is not specified, you can mark a measure in the database and score it as 0.00.